

		respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” Accordingly, Plaintiff’s allegations regarding Defendants’ failure to timely file a writ of administrative mandamus within the applicable statute of limitations is sufficient to demonstrate a failure to perform legal services competently. As for causation, the SAC alleges: “The administrative record, when last obtained by Plaintiff, does not contain evidence that the Accusation was served at all” The lack of evidence of service may support a finding that a court entertaining a writ of administrative mandamus would have granted relief on that basis. This allegation is sufficient to demonstrate causation. As for damages, Plaintiff makes two key arguments. First, he notes “there is a serious issue about whether the Accusation states a disciplinary offence,” asserting that a domestic violence incident does not fall within “Unprofessional Conduct,” as that term is defined in Business & Professions Code §§2761(a) and 2762. Second, he asserts that no charges were filed against him, and that the minutes from Placer County Superior Court reflect that after a hearing, he was “exonerated.” He further asserts that the incident was an argument that escalated into mutual pushing with no serious injuries. It is unclear if evidence in the administrative record included his alleged “exoneration” or his version of the story recited in the opposition. If there is exculpatory evidence Plaintiff could have presented to the Nursing Board beyond what the board had in its possession, Defendants’ alleged malpractice deprived him of the opportunity to present that evidence upon a remand by the superior court. A jury could consider this additional evidence and determine that had the Nursing Board been presented with this evidence on remand, it would have imposed no or lesser punishment. Plaintiff should be allowed leave to amend to include allegations regarding damages, including the matters addressed in Plaintiff’s arguments made in his opposition as noted above. The demurrer to the SAC is sustained with one final leave to amend. The Court orders the clerk to give notice.
6	Ruffin v. OC Dental Corp., Inc.	O/C
7	The Learning Light Foundation, Inc. v. Sutcliffe	Before the Court at present are proceedings in three related cases, as follows: (1) Case number 30-2026-01565433 (<i>The Learning Light Foundation, Inc., et al vs. Sutcliffe, et al.</i>) (the “Sutcliffe Action”);